GRIEVANCE REPORT

LOCAL 509 SEIU Stronger Together

STEP#: 2
BARGAINING UNIT: 509

GRIEVANT(S): _____

JOB TITLE: Disability Examiner **AGENCY START DATE (if known):** _____

AGENCY: D.D.S. **REGION:** Everett **WORK LOCATION:** 135 Santilli Hwy, Everett, MA 02149

MANAGER(S):

Employer is in violation of Article(s) _____ and any other relevant provisions of the Agreement.

STATEMENT BY GRIEVANT OR UNION

Use additional sheets of paper if necessary. The statement should include:

1. Nature of the contract violation (i.e. what action did the employer take or fail to take which violated the Contract)
2. The date(s) of the violation and, where appropriate (as in promotions, demotions, transfers, reassignments, etc.), the relevant title(s) and work location(s).

_____

_____

RELIEF OR REMEDY SOUGHT

_____

_____ ...and make grievant(s) whole.

_____

Grievant Signature(s) Date Steward/Union Rep Signature Date

ALLIANCE WAIVER OF RIGHT TO APPEAL DISCIPLINARY ACTION TO CIVIL SERVICE COMMISSION

Collective Bargaining Agreement between the Alliance, AFSCME/SEIU, AFL-CIO Units 8 & 10, effective January 1, 2014 to December 31, 2016.

I wish to submit the attached grievance under Article 23A, Grievance Procedure and Article 23, Arbitration of Disciplinary Action, appealing my demotion, suspension or discharge effective on_____. I hereby waive any and all rights to appeal this disciplinary action to the Civil Service Commission. I have not initiated any appeal of this disciplinary action at the Civil Service Commission.

_____

Grievant Signature(s) Date Steward/Union Rep Signature Date

ACKNOWLEDGEMENT OF ALLIANCE WAIVER OF RIGHT TO ARBITRATE CLAIMS OF DISCRIMINATORY TERMINATION FILED IN MULTIPLE FORUMS

Collective Bargaining Agreement between the Alliance, AFSCME/SEIU, AFL-CIO Units 8 & 10, effective January 1, 2014 to December 31, 2016.

I wish to submit the attached grievance under Article 23A, Grievance Procedure and Article 23, Arbitration of Disciplinary Action, appealing my discharge effective on _____. I acknowledge that, pursuant to Section 4 of Article 23, if I file a charge of discrimination covered by Article 6 with a state or federal agency or a state or federal court, arising from termination of employment, the Commonwealth and the Union agree that the Union waives its right to arbitrate any grievances based on a claim of a violation of Article 6 relating to the same claim of discrimination. If I withdraw my charge with prejudice, other than in the case of a mutually agreeable settlement, the grievance shall be arbitrable if otherwise timely and appropriate.

_____

Grievant Signature(s) Date Steward/Union Rep Signature Date

APPENDIX E
NON-SELECTION FORM

NAME _____CURRENT POSITION J.G. _____
ADDRESS_____ TITLE_____
_____POSITION SOUGHT J.G. _____
_____TITLE _____
SOCIAL SECURITY NUMBER _____

We regret to inform you that another applicant has been selected for the position you sought. That applicant has been selected because he/she has been deemed to be more qualified than you by virtue of one or more of the following reasons:

1. Ability to do the job.
   - Performance evaluation
   - Interview
2. Licenses/Registration
3. Work History
4. Experience in Related Work
5. Education and training directly related to the duties of the vacant position.
6. Seniority
7. Applicant from within the work unit selected.
8. Other (Explain) _____
_____
_____
_____

Comments: _____
_____
_____
_____
_____

This notice is for the purpose of meeting the notice requirements of Article 14, Section 2E. It does not preclude either party from raising other issues under the provisions of Article 23A of the Agreement.

BY: _____
SUPERVISOR

APPENDIX G-1
COMMONWEALTH OF MASSACHUSETTS
CERTIFICATION OF HEALTH CARE PROVIDER FOR EMPLOYEE'S SERIOUS HEALTH CONDITION (FMLA)

SECTION I: For Completion by the EMPLOYER

INSTRUCTIONS to the EMPLOYER: The Family and Medical Leave Act (FMLA) provides that an employer may require an employee seeking FMLA protections because of a need for leave due to a serious health condition to submit a medical certification issued by the employee's health care provider. Please complete Section I before giving this form to your employee. Your response is voluntary. While you are not required to use this form, you may not ask the employee to provide more information than allowed under the FMLA regulations, 29 C.F.R. §§ 825.306-825.308. Employers must generally maintain records and documents relating to medical certifications, recertification, or medical histories of employees created for FMLA purposes as confidential medical records in separate files/records from the usual personnel files and in accordance with 29 C.F.R. § 1630.14(c)(1), if the Americans with Disabilities Act applies.

Employer name and contact:

D.D.S. _135 Santilli Hwy, Everett, MA 02149 _617-727-1600

Employee's job title: Disability Examiner Regular work schedule: _____

Employee's essential job functions: _____

Check if job description is attached: ☐

SECTION II: For Completion by the EMPLOYEE

INSTRUCTIONS to the EMPLOYEE: Please complete Section II before giving this form to your medical provider. The FMLA permits an employer to require that you submit a timely, complete, and sufficient medical certification to support a request for FMLA leave due to your own serious health condition. If requested by your employer, your response is required to obtain or retain the benefit of FMLA protections. 29 U.S.C. §§ 2613, 2614(c)(3). Failure to provide a complete and sufficient medical certification may result in a denial of your FMLA request. 20 C.F.R. § 825.313. Your employer must give you at least 15 calendar days to return this form. 29 C.F.R. § 825.305(b).

Your name:

_____

First Middle Last

SECTION III: For Completion by the HEALTH CARE PROVIDER

INSTRUCTIONS to the HEALTH CARE PROVIDER: Your patient has requested leave under the FMLA. Answer, fully and completely, all applicable parts. Several questions seek a response as to the frequency or duration of a condition, treatment, etc. Your answer should be your best estimate based upon your medical knowledge, experience, and examination of the patient. Be as specific as you can; terms such as "lifetime," "unknown," or "indeterminate" may not be sufficient to

determine FMLA coverage. Limit your responses to the condition for which the employee is seeking leave. Please be sure to sign the form on the last page.

Provider's name and business address: _____

Type of practice / Medical specialty: _____

Telephone: _____Fax: _____

Part A: MEDICAL FACTS

1. Approximate date condition commenced: _____

Probable duration of condition: _____

Mark below as applicable:

Was the patient admitted for an overnight stay in a hospital, hospice, or residential medical care facility?

_____ No _____ Yes. If so, dates of admission: _____

Date(s) you treated the patient for condition: _____

Will the patient need to have treatment visits at least twice per year due to the condition? _____ No_____Yes

Was medication, other than over-the-counter medication, prescribed? _____ No _____ Yes

Was the patient referred to other health care provider(s) for evaluation or treatment (e.g. physical therapist)? _____ No _____Yes If so, state the nature of such treatments and expected duration of treatment:

_____

2. Is the medical condition pregnancy? ____ No ___ Yes If so, expected delivery date: _____

3. Use the information provided by the employer in Section I to answer this question. If the employer fails to provide a list of the employee's essential functions or a job description, answer these questions based upon the employee's own description of his/her job functions.

Is the employee unable to perform any of his/her job functions due to the condition:____ No ____Yes.

If so, identify the job functions the employee is unable to perform:

_____

4. Describe other relevant medical facts, if any, related to the condition for which the employee seeks leave (such medical facts may include symptoms, diagnosis, or any regimen of continuing treatment such as the use of specialized equipment):

_____

_____

_____

_____

_____

_____

_____

PART B: AMOUNT OF LEAVE NEEDED

5. Will the employee be incapacitated for a single continuous period of time due to his/her medical condition, Including any time for treatment and recovery? ___ No ___ Yes

If so, estimate the beginning and ending dates for the period of incapacity: _____

6. Will the employee need to attend follow-up treatment appointments or work part-time or on a reduced
schedule because of the employee's medical condition? ___ No ___ Yes

If so, are the treatments or the reduced number of hours of work medically necessary?
___ No ___ Yes

Estimate treatment schedule, if any, including the dates of any scheduled appointments and the time required for each appointment, including any recovery period:

_____

Estimate the part-time or reduced work schedule the employee needs, if any:

_____ hour(s) per day; _____ days per week from _____ through _____

7. Will the condition cause episodic flare-ups periodically preventing the employee from performing his/her
job functions? ___ No ___ Yes

Is it medically necessary for the employee to be absent from work during the flare-ups?
___ No ___ Yes. If so, explain:

_____

_____

Based upon the patient's medical history and your knowledge of the medical condition, estimate the frequency of flare-ups and the duration of related incapacity that the patient may have over the next 6 months (e.g., 1 episode every 3 months lasting 1-2 days):

Frequency: _____ times per _____ week(s) _____ month(s)

Duration: _____ hours or _____ day(s) per episode

ADDITIONAL INFORMATION: IDENTIFY QUESTION NUMBER WITH YOUR ADDITIONAL ANSWER:

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____ _____

Signature of Health Care Provider **Date**

APPENDIX G-3
COMMONWEALTH OF MASSACHUSETTS
CERTIFICATION OF HEALTH CARE PROVIDER FOR FAMILY MEMBER'S SERIOUS HEALTH CONDITION (FMLA)

SECTION I: For Completion by the EMPLOYER

INSTRUCTIONS to the EMPLOYER: The Family and Medical Leave Act (FMLA) provides that an employer may require an employee seeking FMLA protections because of a need for leave to care for a covered family member with a serious health condition to submit a medical certification issued by the health care provider of the covered family member. Please complete Section I before giving this form to your employee. Your response is voluntary. While you are not required to use this form, you may not ask the employee to provide more information than allowed under the FMLA regulations, 29 C.F.R. §§ 825.306-825.308. Employers must generally maintain records and documents relating to medical certifications, recertifications, or medical histories of employees' family members, created for FMLA purposes as confidential medical records in separate files/records from the usual personnel files and in accordance with 29 C.F.R. § 1630.14(c)(1), if the Americans with Disabilities Act applies.

Employer name and contact: D.D.S. 617-727-1600 _____

135 Santilli Hwy, Everett, MA 02149 _____

SECTION II: For Completion by the EMPLOYEE

INSTRUCTIONS to the EMPLOYEE: Please complete Section II before giving this form to your family member or his/her medical provider. The FMLA permits an employer to require that you submit a timely, complete, and sufficient medical certification to support a request for FMLA leave to care for a covered family member with a serious health condition. If requested by your employer, your response is required to obtain or retain the benefit of FMLA protections. 29 U.S.C. §§ 2613, 2614(c)(3). Failure to provide a complete and sufficient medical certification may result in a denial of your FMLA request. 29 C.F.R. § 825.313. Your employer must give you at least 15 calendar days to return this form to your employer. 29 C.F.R. § 825.305.

Your name: _____

Name of family member for whom you will provide care:_____
First Middle Last

Relationship of family member to you: _____

If family member is your son or daughter, date of birth:_____

Describe care you will provide to your family member and estimate leave needed to provide care:
_____
_____

_____ _____
Employee Signature Date

SECTION III: For Completion by the HEALTH CARE PROVIDER

INSTRUCTIONS to the HEALTH CARE PROVIDER: The employee listed above has requested leave under the FMLA to care for your patient. Answer, fully and completely, all applicable parts below. Several questions seek a response as to the frequency or duration of a condition, treatment, etc. Your answer should be your best estimate based upon your medical knowledge, experience, and examination of the patient. Be as specific as you can; terms such as "lifetime," "unknown," or "indeterminate" may not be sufficient to determine FMLA coverage. Limit your responses to the condition for which the patient needs leave. Page 3 provides space for additional information, should you need it. Please be sure to sign the form on the last page.

Provider's name and business address:_____

Type of practice / Medical specialty: _____

Telephone: _____
Fax:_____

PART A MEDICAL FACTS:

1. Approximate date condition commenced:_____

Probable duration of condition:_____

Was the patient admitted for an overnight stay in a hospital, hospice, or residential medical care facility?

____ No ____ Yes . If so, dates of admission: _____

Date(s) you treated the patient for condition: _____

Was medication, other than over-the-counter medication, prescribed? ____ No ____ Yes.

Will the patient need to have treatment visits at least twice per year due to the condition?

____No ____ Yes

Was the patient referred to other health care provider(s) for evaluation or treatment (e.g., physical therapist)?____No ____Yes. If so, state the nature of such treatments and expected duration of treatment:

_____

_____

2. Is the medical condition pregnancy?____No ____Yes. If so, expected delivery date: _____

3. Describe other relevant medical facts, if any, related to the condition for which the patient needs care (such medical facts may include symptoms, diagnosis, or any regimen of continuing treatment such as the use of specialized equipment):

_____
_____
_____

PART B: AMOUNT OF CARE NEEDED: When answering these questions, keep in mind that your patient's need for care by the employee seeking leave may include assistance with basic medical, hygienic, nutritional, safety or transportation needs, or the provision of physical or psychological care.

4. Will the patient be incapacitated for a single continuous period of time, including any time for treatment and recovery? ____ No ____ Yes

Estimate the beginning and ending dates for the period of incapacity: _____

During this time, will the patient need care? ____ No ____ Yes

Explain the care needed by the patient and why such care is medically necessary:

_____
_____
_____
_____

5. Will the patient require follow-up treatments, including any time for recovery?
____ No ____ Yes

Estimate treatment schedule, if any, including the dates of any scheduled appointments and the time required for each appointment, including any recovery period:

_____

Explain the care needed by the patient, and why such care is medically necessary:

_____

6. Will the patient require care on an intermittent or reduced schedule basis, including any time for recovery? ____ No ____ Yes

Estimate the hours the patient needs care on an intermittent basis, if any:

_____ hour(s) per day; _____ day(s) per week from _____ through _____
Explain the care needed by the patient, and why such care is medically necessary:

_____
_____
_____

7. Will the condition cause episodic flare-ups periodically preventing the patient from participating in normal daily activities? ___ No ___ Yes

Based upon the patient's medical history and your knowledge of the medical condition, estimate the frequency of flare-ups and the duration of related incapacity that the patient may have over the next 6 months (e.g., 1 episode every 3 months lasting 1-2 days):

Frequency: _____ times per _____week(s) _____ month(s)

Duration: _____ hours or _____day(s) per episode

Does the patient need care during these flare-ups? ___ No ___ Yes

Explain the care needed by the patient, and why such care is medically necessary:

_____
_____
_____
_____

ADDITIONAL INFORMATION: IDENTIFY QUESTION NUMBER WITH YOUR ADDITIONAL ANSWER:

_____
_____
_____
_____

_____ _____

Signature of Health Care Provider **Date**

APPENDIX H
COMMONWEALTH OF MASSACHUSETTS

PROGRAM GUIDELINES
FOR
ALTERNATIVE WORK OPTIONS

The Commonwealth and the Union, SEIU, Local 509 support Alternative Work Options (AWO). The parties agree that there are many benefits that may result from Alternative Work Options such as increased productivity and improved morale throughout the workplace. An Alternative Work Option is available to eligible employees based on operational needs of the Agency. This program shall not be subject to the grievance procedure as outlined in the Collective Bargaining Agreement (CBA), and shall not be arbitrable. All parties must recognize the importance of accepting mutual responsibility for good communication for successful participation in an AWO program. Employees, supervisors and managers must understand the heightened importance of communication once an agency begins an Alternative Work Options program. Verbal and written communication among all parties about schedules is essential to increase the efficiency of the process.

The following are the Commonwealth's guidelines for Alternative Work Options.

I. Definitions:

- Alternative Work Options: Variations from the standard work schedule.
- Full-time Employee: Works a total of 37.5 or 40 hours per week.
- Part-time Employee: Works at least half-time, such as 18.75 or 20 hours per week and less than full-time each week.
- Job Sharing: Two part-time employees share the responsibility of one full-time position.
- Telecommuting: Working at an alternate location (a place which differs from an employee's primary work location).
- Four-day work week: Working full-time in four days each week, (also known as a compressed workweek).
- Four and one-half day workweek: A full-time work schedule consisting of four extended work days and one day on which the employee works at least 3.5 or 4 hours.
- Staggered Schedule: The scheduled arrival and departure times differ from the standard work hours or shift hours. Once established, the employee works the same schedule each week.
- Flexible ("Flex") Schedule: Daily and or weekly variations in the time an employee starts and or stops working. A Flex schedule permits employees to set their own

schedules within the guidelines established by the Agency's Management and collective bargaining agreements. Arrival and departure times may vary, as can the number of hours worked each day. Employees must work the total number of hours that are required of full-time or part-time employees each week. Employees are able to make up time missed due to a doctor's appointment or any other personal business by working longer that day or making up the time another day during the week. Some agencies may establish "core hours" during which all employees must be at work regardless of individual schedules. This is not a four-day work program.

- Bandwidth: The earliest time an employee may begin work, to the latest time work may end.

- Core Hours**:** The designated time period during when all employees must be at work, regardless of an alternative schedule. Agencies will define core hours as the range of hours (example 10am to 2pm or 10-11am and 1-3 pm) in a day when employees must be at work, inclusive of a meal period. Example of an exception: Employees working a four and one-half day schedules are exempt from the core hour requirement one day per week. Core hours do not apply when an employee is charging leave time (vacation, sick, or personal time) or unpaid time off.

- Meal Break**:** Federal and state law require employees to take a break for a minimum of 30 minutes after six consecutive hours of work. With prior approval, an employee may take a longer meal break.

- Holidays: Regardless of how many hours an employee normally works in a day, all holiday pay is for a maximum of 7.5 hours or 8 hours (pro-rated for part-time employees).

- Sick, Vacation and Personal Leave: Approved sick, personal and vacation leave may be charged for core time missed. If a whole day is taken off, an employee must charge their accrued leave time to cover their regularly scheduled hours for that day.

- Overtime/Comp. Time Policy: Refer to the Collective Bargaining Agreement.

- Default Schedule: Prior approved work schedule.

- Operational Need: The Agency must have necessary staff present in order to operate during business hours so that there is no disruption in the workplace. The Agency must also ensure that there is staff to meet the responsibilities of the workplace. (Employees must report to the work site or any other designated location for any required trainings or meetings.)

- Any and all other options mutually agreed upon.

II. Eligibility:

Alternative Work Options are open to employees with the approval of Management. The assessment of a request for an alternative work option involves taking into account the employee's recent performance history, up to 24 months from the date of the request,

length of time in the bargaining unit, and operational needs of the Agency. Employees in their probationary period may not participate in an Alternative Work Option Program.

III. Application Process:

- In order to participate, an employee must submit an Alternative Work Options Form and define their "default" schedule for the purpose of ensuring that minimum staffing requirements are met and for ease of time and attendance reporting.

- Unit managers must review all requests for Alternative Work Option schedules and provide a written approval, modification or denial. If the decision is a denial or revocation of an existing individual AWO arrangement, Management must indicate the reason for the denial or revocation. Absent an emergency, the agency will provide notice within ten business days of the elimination of the AWO program for all participants or for a particular participant.

- AWO Request Forms should be maintained in each employee's personnel file.

IV. Alternative Work Options Review Committee

A. Each Department or Agency will establish a process to review all Alternative Work Option (AWO) applications. The review process shall include members from both the Bargaining Unit and Managers.

This process will include all approved and denied AWO applications. The review process will insure that applications are in accordance with the AWO guidelines.

Departments or Agencies will collect information from these applications which will enable them to assess the success of the AWO program.

B. There will be a state wide Review Committee which will review the program on a quarterly basis and recommend changes to the program as necessary to the Agency Heads and the Human Resources Division, (HRD). The Committee shall consist of the current Efficiency Work Group members, or in the alternative, three bargaining unit employees and three Managers

APPENDIX H-1

ALTERNATIVE WORK OPTION APPLICATION FORM

Pursuant to the Alternative Work Option (AWO) Guidelines in the Collective Bargaining Agreement, an Alternative Work Option may be available to eligible employees based on the operational needs of the Agency, which may change. I am aware of Appendix H within the Collective Bargaining Agreement, as well as my Agency's own Alternative Work Option Program.

Start Date Requested: _____

Employee ID: _____ Work Phone #:_ 617-727-1600 _____

Print Name: _____ Title: DISABILITY EXAMINER

Work Address: _ 135 Santilli Hwy, Everett, MA 02149 _____

Type of Alternative Work Option Requested: _____

Please Note: Week-end shifts are available only at Agencies that operate on those days.

Reason for request (voluntary):_____
Attach additional pages if necessary.

If applicable, my requested AWO schedule is as follows:

Day of Week	Start Time	Work Day End	Total Hours
Sunday			
Monday			
Tuesday			
Wednesday			
Thursday			
Friday			
Saturday			
Total Weekly Hours			

_____
Employee Signature

Title		Approved	Denied	Modified
Supervisor				
Manager				
Sr. Manager				

Reason (if denied or modified):_____

_____
Supervisor's Signature Date:

_____
Manager's and Sr. Manager's Signatures Date:

CC: Employee, Supervisor, Manager, Employee's personnel file, 509 Chapter President

COMMONWEALTH OF MASSACHUSETTS
EMPLOYEE RELEVANT SERVICE REQUEST FORM
FOR VACATION ACCRUAL STATUS ADJUSTMENT
(To be returned to the agency human resources/payroll office after completion by employee)

I understand that current employees accruing two weeks of vacation may apply to receive a three-week accrual, effective July 1, 2018, if they meet the threshold of four- and one-half years relevant work experience at the time of hire. I wish to be considered for accelerated vacation accrual status, and I hereby certify that I had at least four and one half (4.5) years of the following relevant work experience at my time of hire. I am including either a current resume, or the resume I submitted at the time of hire, and submit the following information.

Name_____ Current Department_____

Current Job Title Disability Examiner _____

Bargaining Unit **509** Work Email Address _____

Area Code/Telephone # 617-727-1600 __ Employee ID Number _____

Agency Date of Hire _____

Please provide a detailed description of relevant job and/or professional experience, amounting to at least four and one half (4 ½) years, **at time of agency hire** (attach extra pages if necessary):

Name of Employer: _____

Dates of Employment: _____

Description of relevant job duties: _____

_____

_____

Name of Employer: _____

Dates of Employment: _____

Description of relevant job duties: _____

_____

_____

Name of Employer: _____

Dates of Employment: _____

Description of relevant job duties: _____

_____

_____

_____ _____
Employee Signature Date

SUBMISSION MUST BE RECEIVED NO LATER THAN _____
[6 months from date of the implementation of this agreement]

Approval:

_____ _____
Agency Head or Designee Date

Resume included: ____(Y/N)